

APPLICATION TO THE CIVIL CLAIMS LIST

Application Fee

The application fee for making this application is:

\$0.00

The injunction fee applicable to your application is:

\$0.00

The total fee for making this application is:

\$0.00

Applicant fee details

Are you applying as?

☒ Individual

☐ Sole Trader/Partnership

☐ Company

Individual details

Do you have a health care card?

☒ Yes

☐ No

Are you seeking fee relief?

☒ Yes

☐ No

Dependents details

How many people rely on you for financial support?	4
What is the frequency of any financial support you receive for your dependants? For example, from a former or current partner	I do not receive financial support
What is the amount of financial support you receive for your dependants?	\$0

Income details

How much do you receive after tax every two weeks (fortnightly)?

Pay after tax	\$0
Pension	\$930
Other income - for example, worker's compensation, interest, rent or board paid to you	\$530
Superannuation income	\$0
Total income	\$1,460.00

Expenses details

How much do you pay every two weeks (fortnightly)?

Rent or board	\$150
Mortgage repayments	\$0
Credit card and other loan repayments	\$0
Utilities - water, gas, electricity, telephone, internet and data	\$100
Food	\$200
Travel and motor vehicle costs	\$70
Other expenses - for example, health care, child care, insurance	\$100
Total Expenses	\$620.00

Assets details

House and land - market value	\$0
Car or other motor vehicle - market value	\$1000
Current bank or credit union balances (total for all accounts)	\$500
Other assets - for example, money owed to you, shares, trust funds	\$0
Total assets	\$1,500.00

Debts details

Amount owing on your mortgage	\$0
Amount owing on other loans	\$0
Credit cards	\$0
Total amount of other owings	\$0
Total credit limit	\$0
Other debts - for example, amount owed to businesses or individuals. Tell us about each debt	\$0
Total debts	\$0.00

Financial hardship explanation:

This is not about my financial hardship, although related. This is about the unprofessional service I received from CBD movers when I moved house.

As you can see below with the correspondence they admitted to damaging my furniture were unprofessional, late and admitted they were in error.

I am claiming the cost of the job back, as they have damaged my furniture and I have an injury.

Please see below correspondence,

Thanks,

Rich McLean

Hello.

On 19 Oct 2018, at 6:34 pm, Perry <cs@cbdmovers.com.au> wrote:

Hello Richard,

Greetings from CBD Movers!

We sincerely apologize for the inconvenience caused to you during the move.

Therefore you are admitting fault.

We had discussion with the movers who performed your job on the day and they stated that the entire job was performed with due care and skill.

Please see the evidence of the photos.

Job was performed under customer supervision they never dropped or banged anything during the entire move.

This is incorrect and I have witnesses,.

As per the investigation with the movers regarding complaint, please check below statement-

Regarding sticky tape, movers mentioned that they didn't use sticky tape on any furniture.

This is incorrect. I have photographic evidence and witnesses. It destroyed my antique furniture and marked my shelving.

Customer's furniture was very old as you also mentioned in your email.

This is why it is so valuable.

Movers informed us that all furniture was very old and already taped by sticky tape.

This is incorrect. Why would I tape my own furniture?

They didn't use sticky tape.

This is incorrect i have factual photographic evidence and witnesses.

Movers mentioned that customer was asking us to hurry up on the job.

This is because they were slow and were charging by the hour then half hour increments and we just wanted it done. They did not know what they were doing.

He wants to finish the job quickly so he was helping them to finish the job quickly.

They were going too slow. I also injured my hand that I have a medical certificate for because they were so slow. They did not object to me helping.

The document box which damage during the move, it was cardboard box and we never recommend cardboard box in the moving.

People always use cardboard boxes moving.

This box was already in poor condition.

How would you know? I had witnesses and photographic evidence

Regarding desk and keys, they mentioned that customer don't have drawer keys

The keys were in the cabinet.

and it was already locked before.

No it was not.

So they didn't damage anything and they didn't lock the keys.

I have evidence of my antique furniture being damaged because the keys were left in the front of the item when it was moved. professional movers should have known better.

Regarding payment before finish the job, as per company policy movers reserve the right to secure the payment before finish the unloading.

This is incredibly rude.

We have already shared terms and conditions in booking confirmation email. Please check below screen shot for your reference-

I have, you are within your rights to ask for early payment, but it is unprofessional and rude, but I still want compensation and an entire refund.

<image003.jpg>

Regarding late coming, we understand that we booked you in between 7-9am

No, someone called me the day before and said to be ready at seven.

but unfortunately movers were late on the day and they reached at your location around 10am.

Not good enough. I had commitments at the other end.

. But please check our terms and conditions we have already mentioned that we will do our best to arrive within the time scale. We cannot take the guarantee of arrival time which is mentioned in this booking. Movers arrival can be delayed due to previous job/customer delays. This is beyond our control. Please check below screen shot-

<image005.jpg>

We agree with you

I am glad you agree with me. This shows that you are compliant with the damage and the methods used by your company.

I am now taking this case with the evidence to the ombudsman.

You can do this the hard way and go through an extraordinarily embarrassing process that is long and drawn out, as I have witnesses and evidence, or you can simply refund my money.

and please accept apologies for inconvenience again.

I will except nothing short of a total refund and my antique furniture fixed, because you said also in your email that you are insured for damages.

But as this is moving job and we can't take guarantee of arrival time.

Regarding payment, as per booking details we quoted you for 2Men+4.5 ton @special price of \$85/hr+1.5 hours return hour fee+ \$80 fuel levy. Fuel levy was paid by you as an advance deposit. Movers took 5.5 hours to complete this job. So we charged you for 7 hours as we quoted you for 1.5 hour return hour fee. So we didn't charge you for any extra amount.

Should you have further query please write on cs@cbdmovers.com.au

This issue will now be forwarded along with the evidence and this email, to the ombudsman and also my no win no fee lawyer.

i recommend you refund my money before I gain traction for the ombudsman to accommodate not only a refund, but my antique furniture being restored.

Acknowledgement

First name

Richard

Family name

I certify that:

☒ to the best of my knowledge, all information provided in this application is true and correct.

☒ it is an offence under section 136 of the Victorian Civil and Administrative Tribunal Act 1998 to knowingly give false or misleading information to VCAT.

Date of certification

31/10/2018